

Before the
FEDERAL MARITIME COMMISSION

Docket No. 23-02

BED BATH & BEYOND, INC.

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

MOTION TO STRIKE

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) through their undersigned attorneys, hereby move pursuant to 46 C.F.R. 502.70 (Procedure for dispositive motions) and 46 C.F.R. 502.72(b) (Dismissals), to strike the December 13, 2024 Opening Brief (“Brief”) of Complainant Bed Bath & Beyond, Inc. (“Complainant” or “BBBY”) on the ground that it violates the Procedural Rules of the Federal Maritime Commission (“FMC”) as well as the December 5, 2024 Order of the Presiding Officer. Our memorandum in support of this motion follows immediately below.

CONFERENCE OF COUNSEL

Counsel for Complainant and Respondents conferred regarding the relief sought herein on December 19, 2024 via email. Complainant is opposed to the relief sought herein and has requested an extension of time to respond to the foregoing motion to January 17, 2025. Respondents are not opposed to the requested extension.

ARGUMENT

Under the Procedural Rules of the Federal Maritime Commission, the page limit for any brief is “eighty (80) pages in length, exclusive of pages containing the table of contents, table of authorities, and certificate of service, unless the presiding officer allows the parties to exceed this limit for good cause shown” 46 C.F.R. 502.214(e). Although this Rule does not by its terms

exclude pages devoted to proposed findings of fact, the Commission’s ALJs have adopted a typical practice of also excluding such pages, as the Presiding Officer has done here. *See*, Scheduling Order, June 8, 2024 at 2-3. That Order ***does not***, however, allow parties to exclude “proposed conclusions of law” from the page limit of the Brief.

On December 3, 2024 Complainant filed a motion to enlarge the page limit to 140 pages, which Respondents opposed as unnecessary and excessively burdensome in terms of legal costs. The Presiding Officer denied Complainant’s motion in part, but did allow a more moderate expansion to 105 pages. Complainant was also given additional time to fit their brief within the new page limit.

Apparently dissatisfied with the Presiding Officer’s page limitation, Complainant simply ignored it. They submitted a Brief of 131 pages, counting pages addressed to “proposed conclusions of law.” We do not purport to be mind-readers, but it certainly appears that Complainant decided to try an end run around the December 5, 2024 Order by simply cutting conclusions of law from their Brief and moving them into their proposed findings of fact and conclusions of law. By including these legal arguments in separate conclusions of law and then citing to them dozens of times in the Brief, Complainant uses the conclusions of law to substitute for legal argument and circumvent the page limit. For just one example, Complainant cites to “C671-671.3” on page 78 of its Brief. That cite consists of 257 words of legal argument Complainant left out of its Brief and should not be entitled to rely upon. The dozens of additional citations—making up 33 total pages of conclusions of law—take Complainant well beyond the 105-page limit provided by the Presiding Officer. Moreover, these cites to conclusions of law within Complainant’s brief permeate the document, and thus the brief itself is based on content that exceeds the authorized page limit.

There is no possible argument for excluding proposed conclusions of law from the limitation on the length of briefs. The Presiding Officer's Order permitting exclusion of proposed findings of fact makes absolutely no reference to proposed conclusions of law. And the Presiding Officer's scheduling order of June 8, 2023 makes crystal clear what a proposed finding of fact is:

"[Party's] Proposed Findings of Fact. This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to ***a single factual proposition***. Each ***factual proposition*** shall be followed by an exact citation ***to evidence*** that the party contends will support the proposed finding of fact. Order at 2 (emphasis added).

Thus, Complainant has brazenly failed to comply with the page limitation imposed by the Commission and modified by the Presiding Officer. And this was not a small overage, but instead 26-extra pages. Complainant's flouting of the Commission's Rules and the Presiding Officer's Order warrants the striking of its Brief. At the very least, the Presiding Officer should strike all references in the Brief to proposed conclusions of law as set out in Complainant's misbegotten proposed "Conclusions of Law" and the deletion of these additional 26 pages from the ostensible findings of fact.¹

CONCLUSION

For the foregoing reasons, Complainant's Brief should be stricken. Should the Presiding Officer not strike the brief in its entirety, all pages of the conclusions of law surpassing 105 aggregate pages with the Brief should be stricken, and the references to these proposed conclusions of law in the brief should also be stricken. In the alternative, although such relief would still prejudice Respondents, should the Presiding Officer decline to strike any portion of the Brief or proposed conclusions of law, Respondents should be afforded extra time to respond

¹ A decision to accept the Brief, allow Complainant to escape sanction, and to instead allow Respondent to likewise violate the Rules and Order, would not only reward Complainant's apparently deliberate decision not to comply, but also compound the harm to Respondent (increased legal fees) created by the Order allowing 105 pages.

to the nearly 25% more pages included in Complainant's Brief and be granted an equivalent page extension and a further two-week extension of time.

DATED: December 19, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on the 19th day of December 2024, a true and correct copy of the foregoing **Motion to Strike** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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